

Smt. Swathi Nitin Tulasalkar vs Sri. Nitin Tulasalkar on 14 December, 2023

Author: S.G.Pandit

Bench: S.G.Pandit

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NC: 2023:KHC:45495
CP No. 352 of 2023

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 14TH DAY OF DECEMBER, 2023

BEFORE
THE HON'BLE MR JUSTICE S.G.PANDIT
CIVIL PETITION NO. 352 OF 2023
BETWEEN:

SMT SWATHI NITIN TULASALKAR,
AGED ABOUT 32 YEARS,
W/O NITIN TULASALKAR,
OCC. HOUSE WIFE, R/O RAJRAJESHWARI NILAYA,
OLD RTO ROAD, VINOBBHANAGARA,
SAGAR, SHIVAMOGGA DISTRICT - 577401.

...PETITIONER

(BY SRI RAJENDRA S., ADVOCATE FOR,
SRI S V PRAKASH, ADVOCATE)

AND:

SRI NITIN TULASALKAR,
AGED ABOUT 38 YEARS,
S/O CHIDAMBAR,
OCC: SOFTWARE ENGINEER,
R/O NO. 71, AKSHAY COLONY,
HUBBALI - 580030, DHARWAD DISTRICT.

...RESPONDENT

Digitally
signed by
PRAMILA G V
Location:
HIGH COURT
OF
KARNATAKA

(BY SRI MAHAVEER K JAIN, ADVOCATE)

THIS CIVIL PETITION IS FILED UNDER SEC.24 OF CPC,
PRAYING TO A) PASS ON ORDER WITHDRAWING THE
PETITION FILED BY THE RESPONDENT AGAINST THE
PETITIONER IN M.C.NO.294/2023 UNDER SECTION 13(1)(IA)
AND 13(IB) OF HINDU MARRIAGE ACT, 1955 PRAYING FOR A
JUDGMENT AND DECREE TO DISSOLVE THE MARRIAGE

SOLEMNIZED BETWEEN THE PETITIONER AND THE
RESPONDENT WHICH IS TITLED AS NITIN TULASALKAR V/S
SMT. SWATHI ON THE FILE OF LEARNED I ADDL. PRL. FAMILY
JUDGE, HUBBALLI, DHARWAD TO THIS HON'BLE COURT AND
THEREAFTER TO TRANSFER THE SAME TO THE FILE OF

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NC: 2023:KHC:45495

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LEARNED SENIOR CIVIL JUDGE AND JMFC, SAGARA,
SHIVAMOGGA WHEREIN THE PETITION FILED BY THE
PETITIONER IN CRL.MISC.NO.54/2021 IS PENDING FOR
DISPOSAL IN ACCORDANCE WITH LAW BY ALLOWING THIS
PETITION AND ETC.

THIS PETITION COMING ON FOR ADMISSION THIS DAY
THE COURT MADE THE FOLLOWING:

ORDER

1. The petitioner, wife of the respondent is before this Court under Section 24 of the Code of Civil Procedure, 1908 (for short hereinafter referred to as 'CPC'), with a prayer to transfer M.C.No.294/2023 pending on the file of Principal Judge, Family Court, Hubballi at Hubballi, filed by the respondent-husband under Section 13(1)(i-a) & (i-b) of the Hindu Marriage Act, 1955 (for short, '1955 Act') to the Court of Principal Civil Judge and JMFC, Sagara, Shimoga, for disposal.
2. Heard Sri. Rajendra.S., learned counsel for the petitioner and Mahaveer K.Jain, learned counsel for the respondent. Perused the petition papers.
3. Learned counsel for the petitioner would submit that marriage of the petitioner and the respondent was NC: 2023:KHC:45495 solemnized on 28.11.2023 and from their marriage, they have one child by name Aryan N.T. It is submitted that the petitioner is not working and she has no income of her own. Further, learned counsel would submit that the petitioner has initiated proceedings in Crl.Misc. No.54/2021 on the file of Principal Civil Judge and JMFC, Sagara, Shimoga, seeking maintenance. Respondent has initiated proceedings in M.C.No.294/2023 under Section 13(1)(i-a) & (i-b) of 1955, seeking dissolution of marriage, before the Principal Family Court, Hubballi.
4. Learned counsel for the petitioner would submit that it would be difficult to travel from Sagara to Hubballi. Therefore, he prays for transfer of M.C.No.294/2023, on the file of Principal Family Court, Hubballi to the Court of Sagara.
5. Learned counsel for the respondent/husband has filed a memo dated 14.12.2023 signed by the respondent stating that he has no objection to allow the NC: 2023:KHC:45495 Civil Petition and to transfer the divorce petition from the Family Court at Hubballi to the Court at Sagara.

6. Taking note of the above submissions of the learned counsel for the parties and also memo filed by the respondent/husband, the following order is passed.

ORDER

1) Civil Petition filed under Section 24 of CPC is allowed.

2) The proceedings in M.C.No.294/2023 pending on the file of Principal Judge, Family Court, Hubballi is directed to be transferred to the Court of Principal Civil Judge (Sr.Dn.) and JMFC, Sagara, Shimoga for disposal in accordance with law.

Sd/-

JUDGE GVP